

Usha Devi (Smt.) v. State of U.P. & 2 Others

Allahabad High Court · Single Judge · 2 August 2014 · WRIT - C No. 900 of 2014 · **Writ petition allowed; District Magistrate's order ceasing the petitioner's financial/administrative powers as Gram Pradhan quashed**

HEADNOTE

Not an electricity/Supply Code case — a U.P. Panchayat Raj Act ruling on the preliminary/fact-finding enquiry procedure required under the proviso to Section 95(1)(g) before a District Magistrate may cease a Gram Pradhan's financial and administrative powers pending a removal proceeding, applying the Full Bench decision in *Vivekanand Yadav v. State of U.P.* Recorded compactly given its complete absence of electricity/Supply Code nexus (it concerns village-panchayat governance and Rules, 1997 enquiry-officer qualifications); noted in this corpus's master citation ledger only because the case was collected among search results for Supply Code-adjacent material.

HOLDING-UNITS

INTERPLAY · OFFTOPIC::panchayat-raj-act-pradhan-removal-enquiry

A report submitted by an officer not validly appointed as 'Enquiry Officer' under Rule 2(c) of the 1997 Rules (and not a District-Level Officer) cannot constitute a valid preliminary enquiry report for ceasing a Gram Pradhan's financial and administrative powers under the proviso to s.95(1)(g)

HOLDING

The District Magistrate's order was quashed. Applying the Full Bench ruling in *Vivekanand Yadav v. State of U.P.*, a valid preliminary enquiry report for purposes of ceasing a Pradhan's powers under the proviso to s.95(1)(g) must be submitted either by the District Magistrate himself or by a person appointed and qualifying as 'Enquiry Officer' under Rule 2(c) of the 1997 Rules (ordinarily a District-Level Officer). Here, the officer (Assistant Director, Savings) who submitted the report relied upon by the District Magistrate was never validly appointed as Enquiry Officer (the only such appointment, of the District Savings Officer, never resulted in a submitted report) and did not, in any event, qualify as a District-Level Officer under Rule 2(c); his report was accordingly not a valid basis for the impugned order.

¶ paras 11-18

LIMITING FACTS

The petitioner, an elected Gram Pradhan, was restrained from exercising financial/administrative powers on the basis of a report by the Assistant Director (Savings), Jaunpur, alleging misappropriation of Rs. 7,97,744 in panchayat construction funds; the District Magistrate's actual enquiry-officer appointment (District Savings Officer) never submitted the relied-upon report.

FLAG Recorded compactly given its complete absence of electricity/Supply Code nexus; not exhaustively digested against this corpus's doctrinal framework.

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Vivekanand Yadav v. State of U.P. & Anr.</i> 2010 (10) ADJ 1 (FB) [1444640] Allahabad High Court (Full Bench)	Sets out the complete procedural framework for preliminary/fact-finding enquiry and final removal enquiry under s.95(1)(g) of the U.P. Panchayat Raj Act, 1947 and the 1997 Enquiry Rules, including who qualifies as 'Enquiry Officer'.	Followed as controlling.	Court	Followed

